

21STCV45868 21STCV45868

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-07-16

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Case Number: 21STCV45868 Hearing Date: July 16, 2026 Dept: H

Varela v. Sandoval, et al., Case No. 21STCV45868

ORDER ON MOTION

TO BE RELIEVED AS COUNSEL

Counsel for Plaintiff Juan

Manuel Varela's (i.e., Boyajyan Law Firm, APC) Motion to be Relieved as Counsel

is GRANTED, contingent upon satisfactory

resolution of the notice concern identified herein and effective upon the filing of the proof of

service reflecting service of the

signed order upon

Client at Client's last known address.

Background

Plaintiff

Juan Manuel Varela ("Plaintiff")

alleges that he sustained injuries and damages in a December 15, 2019 motor vehicle collision on Arrow Highway, near Bonnie Cove Avenue, in Glendora.

On December 15, 2021, Plaintiff filed a complaint, asserting a cause of action for Motor Vehicle against Gabriela Teresa Sandoval ("Sandoval"), Christine Roche Cabrera ("Cabrera") and Does 1-10.

On June

6, 2025, an "Order of Dismissal" was entered, without prejudice, as to Cabrera.

An

Order to Show Cause Re: Why the Case Should Not be Dismissed for Failure to Prosecute and Abandonment is set for July 16, 2026.

Pending

before the Court is counsel for Plaintiff's motion to be relieved as counsel.

Notice

The proof

of service accompanying the instant motion reflects that the motion was electronically served on Sandoval's counsel on June 18, 2026. There is no proof of service on the court docket reflecting that the client was served with the motion. California Rules of Court, rule 3.1300(c) provides that "[p]roof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing;" accordingly, any proof of service reflecting Code of Civil Procedure section 1005, subdivision (b) compliant notice to Client should have been filed no later than July 9, 2026. Moving counsel is directed to provide the Court with satisfactory proof of service of the motion to Client at or before the time of the hearing.

Discussion

The

following analysis is contingent upon satisfactory resolution of the notice concern identified above.

Boyajyan Law Firm, APC seeks to be relieved as counsel of record for Plaintiff ("Client").

The

court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice. (See Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915; People v. Prince (1968) 268 Cal.App.2d 398.)

California

Rules of Court, rule 3.1362 requires (1) a notice of motion and motion directed to the client (made on the Notice of

Motion and Motion to Be Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure § 284(2) is brought instead of filing a consent under section 284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion, the declaration, and the proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)). The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (Cal. Rules Court, rule 3.1362(e).)

Attorney Marselin

S.K. Boyajyan ("Boyajyan") represents that "[t]here has been a complete and irreparable breakdown of the attorney-client relationship" and that he "can no longer represent the interests of [Client] as it relates to this action."

Boyajyan states that he has served Client by mail at Client's last known address with copies of the motion papers served with his declaration and that he confirmed within the past 30 days that the address is current, as follows: "[c]urrent address listed on Spokeo (a people search website)."

The

Court determines that the requirements of Rules of Court Rule 3.1362 enumerated above have been sufficiently met.

Accordingly,

the motion is granted, effective upon the filing of the proof of service reflecting service of the signed order upon Client at Client's last known address.